

TEST - 4  
GENERAL STUDIES - 2  
ASCEND - GS MAINS TEST SERIES 2024

**Q1: Highlight the unique features of the Indian Constitution that distinguish it from other constitutions, despite drawing inspiration from them. (10 Marks, 150 Words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about the Indian constitution.

**Body:** Address the demand by discussing the element drawn from other constitutions and distinctive features of Indian Constitution.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** The Indian Constitution reflects the country's core values and goals. Though it borrowed elements from other global constitutions, but it is also kept in mind India's diversity. The framers included specific articles to ensure it aligns closely with India's cultural and social fabric.

**Elements Drawn from Global Constitutions:**

- **Parliamentary System from the UK:** India adopts a British-style bicameral parliamentary system, reflected in the formation of the Rajya Sabha and Lok Sabha under Articles 79-122.
- **Bill of Rights from the US:** Fundamental Rights (Articles 12-35) in the Indian Constitution resonate with the American Constitution's Bill of Rights.
- **Directive Principles from Ireland:** Inspired from the Irish Constitution, Directive Principles of State Policy (Articles 36-51) guide and reflect the nation's socio-economic aspirations.
- **Federal System with a Unitary Bias from Canada:** India's federal system, with a unitary bias during emergencies under Article 352, ensures stability while allowing centralized action when necessary.

**Constitution of India maintains its distinctiveness in the following ways:**

- **Incorporation of Socio-Economic Rights:** Such as Article 21A - ensuring the right to education, and Article 39A - emphasizing equal justice and free legal aid.
- **Secularism (Article 25-28):** Indian secularism, enshrined in Articles 25 to 28, goes beyond mere separation of religion and state. It ensures equal respect and dignity for all religions.
- **Social Justice:** Articles 15 and 17 prohibit discrimination on various grounds and abolish untouchability to rectifying historical injustices and fostering an inclusive society.
- **Special Status to Certain Regions:** Provisions like Articles 244 and 244A provide special arrangements for North-Eastern and tribal areas.

The Indian Constitution shows how adaptable and innovative it is by combining ideas from other countries with India's own needs. Its unique features ensure that the government reflects India's diverse culture, needs and aspirations.

**Q2: To what extent the Indian Constitution has adopted the principles of fundamental rights, federalism, and separation of powers from the American Model. (10 Marks, 150 Words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about constitutional framework of India and USA.

**Body:** Address the demand by Comparing Fundamental Rights, Federalism, and Separation of Powers of India and USA.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** The constitutional frameworks of India and the USA, while both rooted in democracy, exhibit differences and shared principles in fundamental rights, federalism, and separation of powers.

## Comparing Fundamental Rights, Federalism, and Separation of Powers:

| Aspect                      | India                                                                                                     | USA                                                                                                |
|-----------------------------|-----------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------|
| <b>Fundamental Rights</b>   | Both guarantee fundamental rights with reasonable restrictions, protected through judicial review.        | Both guarantee fundamental rights with reasonable restrictions, protected through judicial review. |
|                             | Indian Constitution, post-Maneka Gandhi case, incorporated 'due process of law' akin to the US.           | US Constitution has 'due process of law' as a fundamental principle.                               |
|                             | Lacks a right to bear arms and jury trials.                                                               | Includes a right to bear arms and has jury trials.                                                 |
|                             |                                                                                                           |                                                                                                    |
| <b>Separation of Powers</b> | Separation of powers is flexible, with overlap; the executive is part of the legislature.                 | Strict separation of powers among executive, legislative, and judicial branches.                   |
|                             | Judges are appointed through a collegium system.                                                          | Supreme Court judges are nominated by the President.                                               |
|                             | Constitutional supremacy exists.                                                                          | Judicial supremacy exists.                                                                         |
|                             | Executives are accountable to the legislature.                                                            | Executives are not accountable to the legislature.                                                 |
|                             |                                                                                                           |                                                                                                    |
| <b>Federalism</b>           | Quasi-federal constitution.                                                                               | Fully federal constitution.                                                                        |
|                             | Single constitution for the entire country.                                                               | Each state has its own constitution.                                                               |
|                             | Follows a "holding together" model, dividing a single country into states for administrative convenience. | Follows a "coming together" model where states join to form a union.                               |
|                             | Single citizenship.                                                                                       | Dual citizenship (national and state).                                                             |
|                             | Residuary powers are vested in the Union.                                                                 | Residuary powers lie with the states.                                                              |

While the Indian Constitution has selectively embraced American principles of fundamental rights, federalism, and separation of powers, it has adapted them to suit its unique socio-political context, thereby shaping distinct constitutional landscapes in both countries.

**Q3: Discuss the significance of the 'Separation of Power' in the Indian context. Also, outline the constitutional provisions that upholds this principle. (10 Marks, 150 words)**

### Approach to the answer:

**Introduction:** Start with introducing in brief separation of power.

**Body:** Address the demand by Comparing Fundamental Rights, Federalism, and Separation of Powers of India and USA then mention the provisions in the Indian Constitution about Separation of Powers.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** Separation of powers is a principle in democratic governance where the responsibilities and powers of government are divided among three distinct branches: the Legislature, Executive and Judiciary. Each branch operates independently to prevent any one branch from gaining too much power, ensuring a system of checks and balances.

### Significance of Separation of Powers for India's Democracy

- **Accountability:** The Executive remains answerable to the Legislature.
  - *Example:* In 2023, a no-confidence motion was introduced against the ruling government, though it was defeated.

- **Checks and Balances:** The judiciary reviews executive and legislative actions for constitutional validity.
  - *Example:* In 2015, the Supreme Court struck down the NJAC Act, which sought to replace the collegium system of appointing judges.
- **Upholding Rule of Law:** Ensures laws are just, fair, and reasonable.
  - *Example:* In the Maneka Gandhi vs. Union of India case (1978), the Supreme Court redefined personal liberty under Article 21.
- **Protection of Rights:** Safeguards Fundamental Rights from erosion by legislative or executive actions.
  - *Example:* In the Kesavananda Bharati case (1973), the Supreme Court ruled that the Constitution's "Basic Structure" cannot be eroded.
- **Reducing Misuse of Power:** Limits the excesses of power by government entities.
  - *Example:* During the Emergency (1975-77), the judiciary addressed the curtailing of citizens' rights, in the ADM Jabalpur vs. Shivkant Shukla case (1976).

#### Provisions in the Indian Constitution about Separation of Powers:

- **Article 50:** Highlights the separation of the Judiciary from the Executive. The Executive enforces laws, while only the Judiciary can interpret and deliver judgments, ensuring no overlap of roles.
- **Articles 121 & 211:** Restrict discussions in Parliament or State Legislatures about judges' conduct.
- **Articles 122 & 212:** Protect legislative procedures from judicial intervention.
  - *Example:* Courts cannot question the validity of legislative proceedings on procedural grounds, ensuring legislative autonomy.
- **Article 361:** Provides the President and Governors immunity from legal action for official decisions.
  - *Example:* President Fakhruddin Ali Ahmed could not be taken to court for declaring the Emergency in 1975.
- **Independence of the Judiciary:** Ensures security of tenure for Supreme Court and High Court judges, who can be removed only through a complex process (Articles 124 and 218), ensuring their independence.

It is imperative for the organs of government to respect each other's domains to uphold the democratic ethos and ensure effective governance.

#### Additional Information:

##### Challenges and Criticisms

- **Overlap of Functions:** Despite the clear demarcation, there are instances where the functions of the branches overlap. For example, the executive is part of the legislature in a parliamentary system.
- **Judicial Overreach:** There have been concerns about the judiciary encroaching on the domains of the legislature and the executive, often termed as judicial activism or overreach.
- **Legislative and Executive Encroachments:** Instances where the legislature and executive try to interfere with the functioning of the judiciary or influence judicial appointments.

**Q4: 'The Indian Constitution has evolved to reflect the changing socio-economic and political circumstances of the country over the decades.' Discuss with the help of relevant constitutional amendments.**

**(10 Marks, 150 Words)**

#### Approach to the answer:

**Introduction:** Start with introducing in brief about Indian constitution's dynamic nature.

**Body:** Address the demand by highlighting constitutional amendment related to social, economic and political context to show its dynamic nature.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** Dr. B.R. Ambedkar's assertion that the Indian Constitution embodies "the spirit of the age" reflects its dynamic nature. Over the decades, the Constitution has adeptly adapted to evolving socio-economic and political contexts through various mechanisms:

- **Social Context - Constitutional Amendments:**

- **1st Amendment:** Introduced to support land reforms by adding Schedule IX, protecting land reform laws from judicial review.
- **86th Amendment (2002):** Made the right to education a fundamental right, aligning with the post-liberalization emphasis on education.
- **102nd Amendment (2018):** Provided constitutional status to the National Commission for Backward Classes (NCBC), enhancing the social justice framework for backward classes.
- **103rd Amendment (2019):** Introduced a 10% reservation for economically weaker sections (EWS) in education and government jobs, addressing economic disparities among all communities.

- **Political Context - Constitutional Amendments:**

- **7th Amendment (1956):** Reorganized states on a linguistic basis, which significantly altered the political map of India to better represent linguistic and cultural identities.
- **44th Amendment:** Replaced 'internal disturbance' with 'armed rebellion' to prevent misuse of national emergency powers post-1975 emergency.
- **52nd Constitutional Amendment (1985):** Added the Tenth Schedule to the Constitution to curb political defections by legislators, ensuring stability in elected governments.
- **73rd and 74th Amendments:** Granted constitutional status to local bodies, enhancing grassroots governance.

- **Economic Context - Constitutional Amendments**

- **4th Amendment (1955):** Modified the right to property to allow the state to acquire private property for public purposes, laying the foundation for land reforms aimed at economic equity.
- **97th Amendment (2011):** Gave constitutional status and protection to cooperative societies, recognizing their role in promoting economic development and social justice.
- **101st Amendment (2016):** Introduced the Goods and Services Tax (GST), creating a single unified market, simplifying the tax structure, and promoting economic integration and growth.

These amendments illustrate how the Indian Constitution has evolved to address the socio-economic and political changes in the country. By adapting to new challenges and circumstances, the Constitution has remained a living document, capable of guiding India's democratic and developmental aspirations.

**Additional Information:**

- **25th Amendment (1971):** Further curtailed the right to property, ensuring that the directive principles of state policy, particularly those aimed at securing economic justice, had primacy over fundamental rights.
- **93rd Amendment (2006):** Enabled the state to make special provisions for the advancement of socially and educationally backward classes, including reservations in private educational institutions.
- **61st Constitutional Amendment (1988):** Reduced the voting age from 21 to 18 years, expanding the democratic participation of the youth in the political process.

**Q5: 'The Judiciary played an important role in preventing Parliament from abusing Article 368 to alter the Basic Structure of the Constitution.' Discuss this statement with the help of relevant case laws.**

**(10 Marks, 150 Words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about Article 368.

**Body:** Address the demand by highlighting judicial intervention preventing abuse of article 368.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** Article 368 of the Indian Constitution grants Parliament the power to amend the Constitution. However, this power is not absolute and is subject to limitations to prevent any alteration that would compromise the Constitution's core principles.

### Judicial Interventions Preventing Abuse of Article 368

- **Shankari Prasad v. Union of India (1951):** Supreme Court ruled that Parliament has the power to amend any part of the Constitution, including fundamental rights.
- **Golak Nath v. State of Punjab (1967):** Supreme Court held that Parliament cannot amend fundamental rights.
  - **Response to Golak Nath Case: 24th Constitutional Amendment Act, 1971** passed which restored Parliament's power to amend any part of the Constitution, including fundamental rights.
- **Kesavananda Bharati v. State of Kerala (1973):** Supreme Court ruled that Parliament can amend the Constitution but cannot alter its basic structure. The Supreme Court established the Basic Structure Doctrine.
  - **Basic Structure Doctrine:** This doctrine asserts that certain fundamental aspects of the Constitution cannot be altered by amendments under Article 368 such as the supremacy of the Constitution, the rule of law, the principle of separation of powers, the objectives outlined in the Preamble, etc.
  - **Response to Kesavananda Bharati Case: 42nd Constitutional Amendment Act, 1976** was passed in which attempted to curtail the power of the judiciary and enhance the power of Parliament to amend the Constitution.
- **Indira Nehru Gandhi v. Raj Narain (1975):** Supreme Court invalidated the 39th Amendment, reinforcing that amendments cannot damage the basic structure.
- **Minerva Mills Ltd. v. Union of India (1980):** Declared that the power of amendment under Article 368 does not include the power to destroy the basic structure. Reinforced the Basic Structure Doctrine.

The judiciary, through landmark judgments, has played a crucial role in safeguarding the essence of the Constitution against potential misuse of Article 368 by Parliament.

**Q6: Judiciary played a proactive role in the evolution of freedom of speech and expression in India. Discuss with the help of relevant case laws. (10 Marks, 150 Words)**

#### Approach to the answer:

**Introduction:** Start with introducing in brief about freedom of speech and expression.

**Body:** Address the demand by highlighting landmark judgements related to freedom of speech and expression.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** Freedom of Speech and Expression is defined under Article 19(1)(a) which states that 'All citizens shall have the right to freedom of speech and expression'. It is a fundamental right that enables every citizen of India to express their thoughts, beliefs, opinions, and ideas.

#### Judicial Interpretations and Landmark Cases:

- **Romesh Thapar vs. State of Madras (1950):** The Supreme Court upheld the right to freedom of press as an essential part of democracy. The bench observed, "Without free political discussion, public education, which is crucial for the proper functioning of a democratic government is not possible."
- **Bennett Coleman & Co. vs. Union of India (1972):** Court deemed Newsprint Policy of 1972-73 which imposed quantitative restrictions is unreasonable and unconstitutional. The court emphasized that freedom of the press is part of Article 19(1)(a).
- **Indian Express Newspapers vs. Union of India (1985):** The Supreme Court ordered the central government to reconsider the tax policy imposed on the newsprint and recognized the role of the press in a democracy.
- **S. Rangarajan vs. P. Jagjivan Ram (1989):** Ruled that restrictions must be necessary, but criticism of government is not a valid reason for restriction on Article 19(1)(a).
- **Union of India vs. Association for Democratic Reforms (2002):** Declared that freedom of speech includes the right to impart and receive information, ensuring voters are well-informed.
- **Shreya Singhal vs. Union of India (2015):** The Supreme Court struck down Section 66A of the IT Act, ruling it unconstitutional on the grounds that it violated Article 19(1)(a).

The judiciary has progressively broadened this right to encompass various forms of expression, ensuring it remains a cornerstone of democratic governance while balancing it with reasonable restrictions.

**Q7: Examine the effectiveness of Standing Committees in enhancing the transparency and accountability in the Indian parliament.** (10 Marks, 150 words)

**Approach to the answer:**

**Introduction:** Start with introducing in brief about standing committee.

**Body:** Address the demand by highlighting effectiveness of the Standing Committees then mention the associated challenges.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** Standing Committees in the Indian Parliament are specialized permanent committees tasked with examining and scrutinizing specific areas of legislation and government functioning. Examples include the Standing Committee on Finance, External Affairs, Transport, Tourism, and Culture.

**Effectiveness of the Standing Committees**

- **Legislative Scrutiny:** It scrutinizes bills and legislation.
  - For example, the Committee on Agriculture examines agricultural policies, assesses their impact on farmers, and suggests reforms.
- **Expert Inputs:** These committees consist of members with specialized knowledge and expertise who provide ground reality related recommendations to bring impactful change.
- **Oversight and Accountability:** Standing Committees hold the government accountable by conducting inquiries and investigations.
  - For example: The Standing Committee on Home Affairs examines issues related to border management, and law and order.
- **Policy Recommendations:** Standing Committees make recommendations that shape legislative outcomes. For example, the Standing Committee on Labour and Employment examines labor-related bills, seeks input from workers' unions and industry representatives, and suggests amendments.

**Challenges**

- **Time Constraints:** Committees have limited time to examine bills thoroughly due to the heavy legislative workload.
- **Lack of Resources:** Committees often face resource constraints including staff, budget, and research support, which can hinder their ability to conduct in-depth analysis.
- **Political Influence:** Political interference and party dynamics can influence committee proceedings and limit their independence in decision-making.
- **Limited Implementation Power:** Committees make recommendations, but their ability to ensure the implementation of their suggestions is limited, as the final decision-making power lies with Parliament or the government.
- **Inadequate Stakeholder Participation:** Limited engagement of stakeholders, including experts, civil society organizations, and affected individuals, can undermine the inclusivity and effectiveness of committee proceedings.

To enhance standing committees' effectiveness, involve all stakeholders, provide adequate resources, and regularly review the performance to adapt to evolving needs, improve efficiency, and ensure accountability in legislative processes.

**Q8: Highlight the key features of the 106<sup>th</sup> Constitutional Amendment Act. Also, discuss the criticism associated with it. (10 Marks, 150 Words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about 106<sup>th</sup> constitutional amendment act.

**Body:** Address the demand by highlighting key features of the 106th Constitutional Amendment Act followed by Prevailing Criticisms Against the Women's Reservation Bill.

**Conclusion:** Conclude with summarizing the topic on a positive note.

**Answer:** The 106th Constitutional Amendment Act aims to reserve 33% of seats for women in the Lok Sabha, state legislative assemblies, and the Delhi assembly, including those reserved for SCs and STs. This ensures greater participation of women as public representatives in policy making at the National and State levels

**Key Features of the 106th Constitutional Amendment Act:**

- **Inclusion in the Lower House:** The act introduces Article 330A, reserving seats for women in the Lok Sabha.
  - Additionally, one-third of the SC/ST reserved seats will be designated for women on a rotational basis.
- **Empowering Women in State Assemblies:** Article 332A is introduced to reserve seats for women in every State Legislative Assembly.
- **Special Provisions for NCT of Delhi:** The Bill includes specific provisions to ensure women's representation in Delhi, considering its unique administrative status as the national capital.
- **Initiation of the Reservation Process:** Article 334A states that the reservation system will commence once the census data is available. Following the census, delimitation processes will determine the reserved seats for women.
- **Cyclic Rotation of Reserved Seats:** The Bill specifies that reserved seats for women will rotate after each delimitation process. This rotation mechanism will be defined and regulated through legislative action by Parliament.
- **Timeline of the Reservation:** The reservation is set to be effective for 15 years, with the possibility of extension based on Parliament's discretion.

**Prevailing Criticisms Against the Women's Reservation Bill:**

- **Equality versus Special Provisions:** Critics argue that reserving seats for women might undermine the constitutional principle of equality and meritocracy.
- **Electoral Choices:** Reservations limit the pool of candidates, reducing voter choice.
- **Overlooking OBC Women:** The bill does not address the challenges faced by OBC women. Given their significant numbers, their exclusion from specific reservations has drawn criticism.
- **Legislative Gaps:** The bill reserves seats in the Lok Sabha and State Assemblies but excludes the Rajya Sabha and Legislative Councils, leading to incomplete representation.
- **Dependence on External Processes:** The bill's effectiveness relies on time-consuming census and delimitation exercises, potentially delaying the intended benefits.

To enhance the 106th Constitutional Amendment Act, introduce flexible sub-reservations for OBC women, extend reservations to Rajya Sabha and legislative councils, mandate internal party quotas for women candidates, and implement periodic reviews every five years crucial for its success.

**Additional Information:**

**Way Forward:**

- **Flexible Reservation Mechanism:** Introduce a flexible mechanism, such as sub-reservations within the women's quota for regions with higher OBC populations, to ensure adequate representation for OBC women.
- **Extend Reservation Across Legislative Bodies:** Amend the bill to include reservations in the Rajya Sabha and legislative councils for comprehensive women's representation.

- **Internal Party Reservations:** Mandate political parties to ensure a minimum percentage of women candidates in elections, supplementing constituency-based reservations to broaden women's participation.
- **Periodic Review Mechanisms:** Implement a system to review the effectiveness of the reservation policy every five years, analyzing whether the policy objectives are being met or not.

**Q9: 'Pressure groups played an active role in shaping public opinion and influencing policymaking in India.' In this context, give examples of the movements that have led to significant legislative changes.**

**(10 Marks, 250 Words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about pressure group.

**Body:** Address the demand by discussing role of pressure group and examples of Campaigns and Movements.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** Pressure groups are organized groups of people who actively work together to promote and defend their common interests. They are termed "pressure groups" because their primary function is to exert pressure on the government through various legitimate methods such as lobbying, publicity, propagandizing, petitions, public debates, etc.

**Role of Pressure Groups**

- **Advocacy and Lobbying:** Engage with lawmakers, provide expertise, and lobby for specific legislation.
- **Mobilizing Public Opinion:** Organize campaigns, protests, and awareness programs to generate support.
- **Policy Input and Formulation:** Contribute research, draft proposals, and suggest amendments.
- **Monitoring and Accountability:** Monitor policy implementation and hold the government accountable.

**Examples of Campaigns and Movements**

- **Right to Information (RTI) Act, 2005:** Mazdoor Kisan Shakti Sangathan (MKSS) advocated for transparency, leading to the RTI Act.
- **Narmada Bachao Andolan (NBA):** Opposed large dams on the Narmada River, highlighting displacement and environmental concerns.
- **Jan Lokpal Movement:** Led by Anna Hazare, resulted in the Lokpal and Lokayuktas Act, 2013.
- **Campaign Against Child Labor:** Bachpan Bachao Andolan (BBA) led to stricter laws against child labor.
- **Environmental Protection Campaigns:** Centre for Science and Environment (CSE) and Greenpeace India influenced stricter environmental regulations through Eco-Sensitive Zones (ESZs).
- **Women's Rights Movements:** Protests after the 2012 Delhi gang-rape led to the Criminal Law (Amendment) Act, 2013.

The successful campaigns and movements demonstrate the impact of pressure groups. Their continuous efforts are vital for a vibrant democracy, ensuring inclusive policies that address the needs of all sections of society.

**Additional Information:**

**Examples of Influential Campaigns and Movements by Pressure Groups:**

- **Civil Rights Movement (1950s-1960s):** Aimed to end racial segregation and discrimination against African Americans, leading to the Civil Rights Act of 1964 and the Voting Rights Act of 1965.
- **#MeToo Movement (2017):** A social media campaign against sexual harassment and assault that has empowered survivors and influenced policy changes worldwide.
- **Climate Change Activism:** Movements like Sunrise Movement, Fridays for Future, and Extinction Rebellion have pushed for urgent climate action, shaping public opinion and policy.
- **Pro-Democracy Protests in Hong Kong (2019-2020):** The Umbrella Movement and Anti-Extradition Law Amendment Bill Movement sought to preserve Hong Kong's autonomy, raising international awareness.

**Q10: Discuss the role of State Finance Commission in promoting fiscal decentralisation in India. Suggest reforms to strengthen its effectiveness. (10 Marks, 150 words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about state finance commission.

**Body:** Address the demand by highlighting roles of State Finance Commissions in promoting fiscal decentralization followed by way forward.

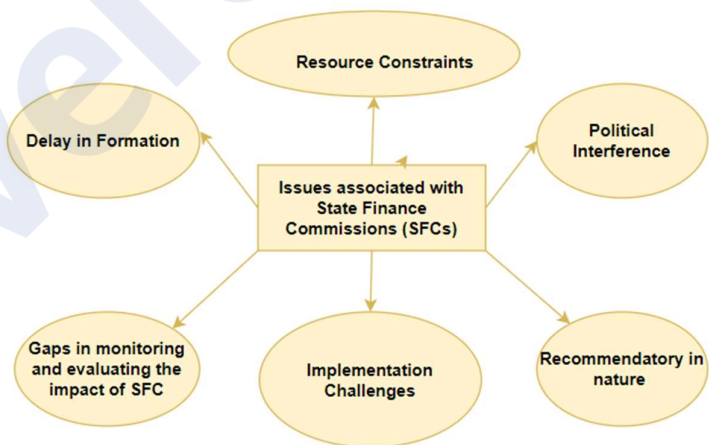
**Conclusion:** Conclude with summarizing the topic.

**Answer:** The State Finance Commission (SFC) is an institution created by the 73rd and 74th Constitutional Amendments under Article 243(I). The SFC is required to recommend the distribution of finance between the State and Local Bodies, assignment of certain Taxes and Grants-in-Aid, etc.

Fiscal decentralization empowers local governments to independently generate and utilize funds, enabling them to tailor development initiatives that are relevant to local needs.

**Roles of State Finance Commissions in promoting fiscal decentralization:**

- **Resource Allocation:** SFCs recommend the formula for sharing the net proceeds of taxes, duties, tolls, and fees between the State and its Panchayats and Municipalities.
  - For example, the 6th SFC of Tamil Nadu devolved 10% of the State's own tax revenue to local bodies.
- **Fiscal Autonomy:** SFCs enhance the financial independence of local governments, which previously relied on higher tiers for financial support.
  - For Example, Nagaland's 3rd SFC determines the rates of various taxes, tolls, and fees that municipalities can levy.
- **Grants-in-aid:** SFCs play a pivotal role in recommending grants-in-aid from the Consolidated Fund of the State to local bodies.
  - For example, Karnataka's 4th SFC suggested performance-based grants for local bodies based on criteria like timely submission of accounts and audit reports.
- **Financial Reforms:** Periodic reviews and recommendations by SFCs encourage local governments to undertake financial reforms, address revenue leakages, and improve fiscal management practices.



**Way Forward:**

- **Public financial management system:** The Fifteenth Finance Commission suggests managing local body funds through a public financial management system for real-time tracking and to prevent delays in fund transfers.
- **Empowering Local Bodies:** The Fifteenth Finance Commission recommended empowering local bodies to raise tax and non-tax revenue.
- **Incentivizing Performance:** Well-performing local bodies should be rewarded to motivate other States to enhance their local governance.

SFC plays a crucial role in ensuring the financial autonomy and sustainability of local governments. Their recommendations should be implemented for fiscal federalism and strengthening grassroots democracy through fiscal decentralization.

**Additional Information:**

- **Role of Governors:** Governors should oversee and ensure the effective functioning of local bodies and the implementation of SFC recommendations.
- **Improved Fund Management:** Currently, the Central Finance Commission (CFC) recommended funds go to State treasuries; they should be transferred directly to local bodies.
- **Incentives for Constituting SFCs:** A portion of PRI and ULB funds could be used as incentives for States that establish State Finance Commissions (SFCs) as per constitutional norms.

**Q11: Define constitutional morality with the help of relevant judicial pronouncement. Discuss the challenges in upholding it and suggest measures to address these challenges. (15 Marks, 250 Words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about Constitutional morality.

**Body:** Address the demand by highlighting key judgments Upholding Constitutional Morality followed by challenges and way forward.

**Conclusion:** Conclude with summarizing the topic on a positive note.

**Answer:** Constitutional morality refers to adherence to the spirit and principles of the Constitution, emphasizing values such as justice, liberty, equality, and fraternity. It guides the interpretation and implementation of laws to uphold constitutional ideals.

**Judgments Upholding Constitutional Morality:**

- **Kesavananda Bharati v. State of Kerala, 1973:** Established the "basic structure doctrine," limiting Parliament's power to amend the Constitution. It is an early instance of upholding the spirit of the Constitution.
- **Naz Foundation v. Government of NCT of Delhi, 2009:** Decriminalized consensual same-sex relationships between adults.
  - Emphasized that "constitutional morality" should prevail over societal perceptions of morality, upholding individual rights.
- **Government of NCT of Delhi v. Union of India (2018):** Defined the power distribution between the Lieutenant Governor and the elected government of Delhi, emphasizing cooperative federalism.
- **Indian Young Lawyers Association v. State of Kerala (Sabarimala Case), 2018:** Struck down the practice of excluding women of a certain age group from the Sabarimala temple.
  - Emphasized that "constitutional morality" includes principles of justice, equality, liberty, and fraternity, outweighing restrictive religious customs.
- **Justice K.S. Puttaswamy (Retd.) v. Union of India, 2017:** Recognized the right to privacy as a fundamental right under Article 21.
  - Underscored the importance of personal autonomy, dignity, and informational privacy, aligning with evolving societal values and constitutional morality.

**Challenges to Constitutional Morality in India**

- **Political Interference:** Political interference in the functioning of constitutional bodies and institutions.
  - Example: Recent changes to the appointment committee for the Election Commission of India.
- **Judicial Activism vs. Judicial Restraint:** Balancing judicial activism with judicial restraint is another challenge.
  - Excessive activism can encroach upon the domain of the executive and legislature.
- **Enforcement and Compliance:** Ensuring effective enforcement and compliance remains a challenge despite having a constitutional framework.
  - Implementation gaps, delays in justice delivery, and lack of awareness about constitutional rights among the general populace contribute to this challenge.

### Way Forward

- **Strengthening Institutions:** Strengthening the independence, integrity, and effectiveness of institutions like the Election Commission, and Central Bureau of Investigation (CBI), etc.
- **Promoting Civic Education:** Increasing awareness and understanding of constitutional rights and values among the public, especially youth, is vital.
- **Enhancing Access to Justice:** Improving access to justice, particularly for marginalized and vulnerable communities, is essential for upholding constitutional principles.
- **Encouraging Ethical Leadership:** Leaders and public officials should demonstrate integrity, accountability, and a commitment to serving the public interest, setting a positive example for society.

Upholding constitutional morality requires continual judicial vigilance and societal awareness to adapt to evolving challenges, thereby reinforcing the foundational principles of justice and equality.

### Additional Information:

- **SP Gupta Case (First Judges Case), 1982:** Supreme Court labeled a constitutional breach as a severe violation of constitutional morality.
- **Manoj Narula v. Union of India, 2014:** Defined "constitutional morality" as adherence to the norms of the Constitution and not acting arbitrarily.
- **Joseph Shine v. Union of India (2018):** Decriminalized adultery, focusing on gender equality and individual autonomy.
- **Navtej Singh Johar v. Union of India, 2018:** Struck down Section 377 of the Indian Penal Code, decriminalizing homosexuality.
- **Common Cause (A Registered Society) v. Union of India, 2018:** Upheld the right to die with dignity by recognizing passive euthanasia and the right to advance directives.
  - Affirmed individual autonomy and dignity as integral components of constitutional morality.

**Q12: Assess the role of the Governor in maintaining the federal balance between the Union and the States. Also, suggest measures to ensure neutrality of the office of governor. (15 Marks, 250 Words)**

### Approach to the answer:

**Introduction:** Start with introducing in brief about office of governor.

**Body:** Address the demand by highlighting role of the Governor in Maintaining Federal Balance Between the Union and the States followed by challenges Associated with the Governor's Office.

**Conclusion:** Conclude with summarizing the topic on a positive note.

**Answer:** The office of the Governor, created under Articles 153-162 of the Indian Constitution, serves as the ceremonial head of a state. The Governor is the "linchpin of the constitutional apparatus of the state." Additionally, the Governor acts as a crucial link between the Union and the states.

### Role of the Governor in Maintaining Federal Balance Between the Union and the States

- **Appointment of Chief Minister:** The Governor appoints the Chief Minister, ensuring a stable government, which is essential for maintaining federal harmony.
  - *Example:* In 2019, the Governor played a pivotal role in forming the coalition government in Maharashtra by appointing the Chief Minister after a prolonged period of political uncertainty.
- **Mediator in State-Central Relations:** The Governor acts as a bridge between the Union and the State, facilitating communication and cooperation.
  - *Example:* During the implementation of GST, Covid, etc. governors played proactive roles.
- **Implementation of Central Policies:** The Governor ensures the implementation of central laws and policies at the state level, maintaining uniformity across states.
  - *Example:* Governors oversee the application of centrally sponsored schemes like MGNREGA and Pradhan Mantri Kisan Samman Nidhi (PM-KISAN).

- **Emergency Powers:** The Governor can recommend the President's Rule under Article 356 if a state government fails to operate constitutionally, preserving federal integrity.
  - *Example:* President's Rule was imposed in Maharashtra in 2019 on the Governor's recommendation due to a deadlock in government formation.
- **Crisis Management:** The Governor acts as a crisis manager during political instability, ensuring the continuity of governance.
  - *Example:* In Karnataka, the Governor's intervention during the political crisis in 2019 helped stabilize the government by overseeing the vote of confidence in the Assembly.
- **Facilitating Inter-State Coordination:** The Governor promotes cooperation among states on common issues, fostering a spirit of federalism.
  - *Example:* Governors facilitate dialogue in inter-state water disputes, such as the Cauvery water dispute between Karnataka and Tamil Nadu, helping negotiate agreements and reduce tensions.

#### Challenges Associated with the Governor's Office

- **Appointment of Governors:** The governor is appointed by the president based on the advice of the central government. This practice raises concerns about the political neutrality and impartiality of the governor.
- **Discretion Powers of Governors:** There have been cases where governors have delayed or withheld assent to bills, dismissed or dissolved state governments, recommended president's rule, or interfered in the functioning of state universities.
  - *Example:* In 2020, the Kerala Governor sent the Kerala Police Act Amendment Ordinance for reconsideration due to potential conflicts with constitutional provisions.
- **Removal of Governors:** Governors can be removed from office at the pleasure of the Union government. As long as they comply with the directives of the Union government, governors can remain secure in their positions.

#### Reform Measures for the Governor's Office

- **Reforming the Appointment and Removal Process:** Amending the Constitution to change the process of appointment and removal of governors.
  - A collegium or parliamentary committee could select candidates based on merit and suitability.
  - The removal of governors could be made more stringent by requiring a resolution of the state legislature or a judicial inquiry.
- **Granting a President-like Status:** Making the governor accountable to the state legislature in a manner similar to how the president is accountable to the Union Parliament, through election and impeachment, can enhance accountability and legitimacy.
- **Sarkaria Commission (1988):** The governor should act as a bridge between the Centre and the state, not as an agent of the Centre.
  - The governor should exercise discretionary powers sparingly and judiciously, avoiding actions that undermine the democratic process.
- **Venkatachaliah Commission (2002):** The governor should not interfere in the day-to-day administration of the state and use discretionary powers sparingly.
- **Punchhi Commission (2010):** The commission recommended deleting the phrase "during the pleasure of the President" from the Constitution. Instead, it suggested that a governor should be removed only by a resolution of the state legislature.

Striking a balance between state and central interests is crucial for ensuring the effective functioning of the Governor's office without undermining democratic principles.

**Q13: Assess the role of the Speaker in maintaining impartiality and autonomy within the legislative framework of India. Also, suggest measures to strengthen the office of speaker. (15 Marks, 250 Words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about Office of Speaker.

**Body:** Address the demand by highlighting how speaker ensuring Independence and Neutrality followed by challenges faced by Office of speaker

**Conclusion:** Conclude with summarizing the topic or with a way forward.

**Answer:** The Speaker is the Presiding Officer of the Lower House of Parliament of India and state legislature. It is the speaker's responsibility for maintaining order and decorum in the house, conducting its business, and ensuring that the legislative process is carried out smoothly.

**Speaker Ensuring Independence and Neutrality:**

- **Presiding Over Sessions:** The Speaker ensures discipline and decorum among members in the Lower House sessions.
- **Interpreting the Constitution:** The Speaker is the final authority on interpreting the Constitution of India within the House.
- **Enforcing Quorum and Discipline:** If quorum is lacking, the Speaker adjourns or suspends meetings until the required attendance is met.
- **Maintaining Order:** The Speaker has authority to punish unruly behavior and disqualify members for defection under the 10th Schedule of the Constitution.
- **Independent Decision-making:** Makes autonomous decisions on parliamentary matters to uphold integrity and fairness.
- **Guardian of House Privileges:** The Speaker safeguards the rights and privileges of the House, its committees, and members.
- **Preserving Neutrality:** The Speaker's non-partisan stance, like N. Sanjiva Reddy's resignation in 1967, upholds the Constitution's separation of powers.

**Criticism due to several issues:**

- **Persistent Political Affiliations:** Speakers continued political ties influence decision-making, compromising neutrality.
- **Scrutiny of Anti-defection Role:** Instances, like in Karnataka, where delay in MLA resignations acceptance raises questions on Speaker's impartiality.
- **Alleged Misuse of 'Money Bill' Status:** Expert concerns arise over misuse of 'Money Bill' Status to bypass Rajya Sabha scrutiny, such as with the Aadhaar Bill.
- **Partisan Conduct Criticism:** Criticism surfaces regarding biased deliberation management, with claims of inadequate debate time allocation.
- **Constitutional Delays:** Instances like Deputy Speaker elections' indefinite postponement raise concerns over constitutional adherence.
- **Bills' Committee Referrals:** Reports indicate inadequate bill references to Parliamentary Committees, impacting legislative oversight.

**Way Forward:**

- **Emulate British Practice:** Require the Speaker to resign from their political party upon election and remain politically neutral to enhance impartiality and credibility.
- **Secure Tenure:** Ensure the Speaker's tenure is secure and limit removal conditions. Define criteria for money bills in the Constitution to restrict discretionary power.
- **Judicial Support:** The Supreme Court emphasizes the need for Speaker's neutrality, advocating reforms for fair and unbiased decisions.
- **Strengthen Committees:** Mandatorily refer bills to parliamentary committees, reducing the Speaker's discretionary power. Provide comprehensive training on constitutional law and parliamentary procedures.

- **Independent Audits:** Conduct regular reviews and audits of the Speaker's decisions by an independent body to ensure adherence to constitutional principles and norms.

The Speaker's role is crucial for ensuring impartiality and autonomy within India's legislative framework. These measures will enhance the Speaker's effectiveness, fostering a fair and balanced parliamentary system.

#### Additional Information:

##### Several judicial rulings related to Office of Speakers:

- **Kihoto Hollohan vs. Zachilhu (1993):** The Supreme Court ruled that decisions of presiding officers in anti-defection cases are subjected to judicial review.
- **Keisham Meghachandra Singh vs. The Hon'ble Speaker, Manipur Legislative Assembly & Ors (2020):** The Court mandated that Speakers must decide on disqualification pleas within three months, barring exceptional circumstances, ensuring timely resolution.
- **Nabam Rebia vs. Deputy Speaker (2016):** The Supreme Court decided that Speakers facing removal notices cannot adjudicate on disqualification petitions under the anti-defection law, ensuring impartiality in such proceedings.
- **Subhash Desai vs. Principal Secretary, Governor of Maharashtra (2023):** The Court directed the Maharashtra Assembly Speaker to establish a timeframe for resolving MLA disqualification pleas, promoting efficiency and accountability.

**Q14: Enumerate the challenges faced in fostering cooperative federalism within India's governance framework. Highlight the constitutional mechanisms available for resolving inter-governmental disputes. (15 Marks, 250 Words)**

#### Approach to the answer:

**Introduction:** Start with introducing in brief about cooperative federalism.

**Body:** Address the demand by highlighting need for cooperative federalism followed by challenges that hinder Cooperative Federalism and constitutional mechanism available for fostering cooperative federalism.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** Cooperative federalism is a governance principle where the central and state governments collaborate and coordinate with each other on various issues and programs to achieve collective goals. The Indian model of federalism is predominantly 'cooperative' as laid down by the **Supreme Court in State of Rajasthan v. Union of India, 1977**.

#### Need for Cooperative Federalism in India

- **Promoting Social Justice:** Balances majority opinion with minority voices, ensuring inclusive governance and social justice.
- **Ensuring Accommodation:** Enhances flexibility in the political system, accommodating cultural and ethnic pluralism and withstanding stress through inclusivity.
- **Ensuring Stability and Growth:** Addresses security, defense, welfare needs, and economic crises, crucial during turbulent times like post-partition India.

#### Challenges that hinder Cooperative Federalism in India:

- **Role of Governor:** States often perceive governors as agents of the Centre, leading to ongoing conflicts such as the tussle between the Lieutenant Governor and elected government in Delhi, and the Supreme Court questioning the role of the Maharashtra governor in calling for a trust vote.
- **Over-centralization:** The Centre holds more power than the states, often leading to conflicts over Union List subjects.
  - For example: Misuse of Article 356 for imposing President's Rule exemplifies this issue; use of the Disaster Management Act to assert control over public order and health, bypassing state authority.

- **Uniform Policy Approach:** The Centre framing policies, making a one-size-fits-all approach is ineffective and hindering cooperation.
- **Fiscal Federalism:** Central govt control devolution of funds Unequal financial resource.
  - For example, delayed GST compensation payments
- **Inter-state disputes:** Such as border conflicts, river disputes strain cooperative federalism.
  - For examples include the Maharashtra-Karnataka dispute over Belgaum and the Punjab-Haryana conflict over the SYL Canal.
- **Unilateral use of central agencies:** without adequate consultation exacerbates federal tensions. Examples include the CBI and ED targeting state officials and the expansion of BSF jurisdiction.
- **Regionalism:** Strong regional identities can lead to secessionist movements, challenging national unity and complicating cooperative governance.

#### **Constitutional mechanisms for resolving inter-governmental disputes:**

- **Inter-State Councils (Article 263):** Empowered to investigate matters of mutual interest to both the Centre and states.
- **Zonal Councils:** Established under the States Reorganization Act of 1956, these councils promote cooperation and coordination among states in each zone
- **Original Jurisdiction (Article 131):** Enables the Supreme Court to adjudicate federal disputes.
- **GST Council (Article 279A):** Facilitates resolution of federal disputes through a democratic process of weighted voting.
- **Finance Commission (Article 280):** Resolves financial disputes by recommending the distribution of central resources between the Centre and states, ensuring equitable sharing of financial resources.
- **Parliament's Power (Article 262):** Provides for adjudication of inter-state water disputes.

Strengthening these mechanisms and fostering a spirit of cooperation and mutual respect between the Centre and states is crucial for enhancing the efficacy of India's federal structure and promoting national unity and progress.

**Q15: Critically analyse the effectiveness of the anti-defection law in upholding the accountability in India's parliamentary democracy. (15 Marks, 250 Words)**

#### **Approach to the answer:**

**Introduction:** Start with introducing in brief about Anti-Defection Law.

**Body:** Address the demand by highlighting role of Anti-Defection Law in Maintaining Political Stability followed by Concerns of Anti-Defection Law in Upholding Accountability of Parliamentary Democracy.

**Conclusion:** Conclude with summarizing the topic on a positive note.

**Answer:** The Anti-Defection Law was introduced by the 52nd Amendment Act in 1985, adding the 10th Schedule to the Constitution. It allows for the disqualification of legislators in Parliament and state assemblies if they defect from one political party to another.

#### **Role of Anti-Defection Law in Maintaining Political Stability**

- **Political Stability:** The Act prevents party shifts, ensuring stability and addressing the "Aaya Ram, Gaya Ram" issue, where legislators switch parties for ministerial positions or other benefits.
- **Upholding the Mandate of Electorates:** It maintains the trust of citizens who elect representatives based on party manifestos.
- **Strengthening Party Politics:** The provision strengthens party politics, as seen with disqualification for voting against the party whip.
- **Preventing Corruption:** It aims to prevent political corruption and horse trading, as recently observed in Madhya Pradesh.
- **Allowing Ideological Differences:** It recognizes genuine ideological differences within parties through "splits," added by the 91st Amendment Act, 2003.

### Concerns of Anti-Defection Law in Upholding Accountability of Parliamentary Democracy

- **Against Right to Speech:** Disqualifying MPs or MLAs for taking an individual stand against the party whip infringes on their right to free speech in the house.
- **Undermining Representative Democracy:** The law undermines representative democracy by empowering political parties that often lack internal democracy and constitutional accountability.
- **No Incentive:** It discourages MPs or MLAs from understanding policies and outcomes, as they must follow the party line.
- **Questionable Role of Speaker:** The Speaker, as the final authority on disqualification, often faces allegations of bias and delays.
  - For example, in 2022, the Maharashtra Speaker delayed decisions on disqualification petitions against rebel MLAs, leading to the government's collapse.
- **Lack of Effectiveness:** The law has been ineffective in preventing horse trading and has led to "resort politics."

### Way Forward:

- **Independent tribunal:** Supreme Court suggested that defection cases should be decided by an independent tribunal headed by a retired judge to ensure transparency and efficiency.
- **Intra-Party Democracy:** Strengthen internal democracy by holding regular periodic elections for higher offices within political parties.
- **Dinesh Goswami Committee:** Recommended that disqualification decisions be made by the President or Governor based on the advice of the Election Commission.
- **Law Commission (170<sup>th</sup> Report):** Political parties should limit the issuance of whips to situations where the government is in danger.
  - Pre-poll alliances should be treated as one political party under the anti-defection law.
- **Constitution Review Commission:** Proposed that defectors be barred from any public office for the rest of their term and that votes cast by defectors to topple the government be treated as invalid.

Thus, defection is a political issue requiring political solutions, including provisions for inner-party democracy. The Speaker should act on defection cases in the spirit of the Kihoto Hollohan case.

**Q16: Do you think judicial activism is a threat to the doctrine of separation of powers? Justify your answer. (10 Marks, 150 Words)**

#### Approach to the answer:

**Introduction:** Start with introducing in brief about Judicial activism and Judicial overreach.

**Body:** Address the demand by highlighting landmark how judicial activism is a treat and how is not to separation of power.

**Conclusion:** Conclude with summarizing the topic and on judicial restraint.

**Answer:** Judicial activism, where courts take an active role in interpreting and shaping the law. In contrast, judicial overreach occurs when courts exceed their legal authority or jurisdiction, making decisions that should be made by other government branches,

### Judicial Activism is a Threat:

- **Encroachment on Legislative and Executive Functions:** Judicial often making decisions that traditionally fall within the purview of the legislature or executive. This encroachment can blur the lines of separation of powers.
  - For example: The Supreme Court's regulating environmental policy, as seen in the Taj Trapezium Case.
- **Undermining Executive Authority:** When courts take on roles that belong to elected bodies.
  - For example: The Supreme Court in 2017 had banned the sale of liquor within 500m of any national or state highway; Supreme court in M.C. Mehta v. Union of India (2018) mandating that no BS-4 vehicles can be sold after March 30, 2020, and only BS-6 vehicles can be sold after that date.

- **Judicial Overreach:** Excessive judicial activism led to judicial overreach, where courts exceed their constitutional mandate,
  - For example, cancelling the NJAC Act (2015), challenges the balance of power among government branches.

**Judicial Activism is not a Threat:**

- **Protection of Fundamental Rights:** Ensures justice when other branches fail, like in the Right to Privacy case (2017).
- **Check on Arbitrary Power:** Acts against unconstitutional actions, as seen in striking down Section 66A of the IT Act (2015).
- **Ensuring Government Accountability:** Addresses corruption and maladministration, highlighted by the Commonwealth Games scam rulings (2010).
- **Filling Legislative Gaps:** Judicial guidelines fill legal voids, like the Vishaka Guidelines on sexual harassment (1997).

Thus, judicial activism is not inherently a threat but should be exercised with caution and respect for the separation of powers to preserve the balance essential for a functioning democracy.

**Q17: 'Government played a proactive role in promoting Cooperatives in India.' In this context, examine the challenges faced by cooperatives in India and suggest measures to overcome these challenges.**

**(15 Marks, 250 Words)**

**Approach to the answer:**

**Introduction:** Start with introducing in brief about Cooperative Societies.

**Body:** Address the demand by highlighting government initiatives to promote cooperatives in India followed by issues associated with it then mention reforms required to address those challenges.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** Cooperative societies are grassroots business organizations formed by groups of people to secure better market deals. The 97<sup>th</sup> Constitutional Amendment of 2011 granted constitutional status to cooperative societies.

**Government Initiatives to Promote Cooperatives in India**

- **Formation of Ministry of Cooperation:** Established in 2021 to provide a separate administrative, legal, and policy framework for the cooperative sector.
- **National Cooperative Development Corporation (NCDC):** Provides financial assistance for cooperative development and promotes programs for the strengthening of cooperatives.
- **Cooperative Societies Act:** Legal framework governing the registration and operation of cooperatives, with state-specific amendments to address local needs.
- **Deendayal Antyodaya Yojana – National Rural Livelihoods Mission (DAY-NRLM):** Aims to promote self-help groups (SHGs) and federations of SHGs into cooperative societies to enhance livelihoods.
- **Fisheries and Aquaculture Infrastructure Development Fund (FIDF):** Provides support to cooperatives in the fisheries sector for infrastructure development.
- **Interest Subvention Scheme:** Offers interest subsidies on loans taken by cooperative societies to improve their financial viability.

**Issues Associated with Cooperative Societies in India include:**

- **Lack of Awareness and Education:** Farmers in remote areas are unaware of the benefits of forming agricultural cooperatives to improve market access and negotiate better prices.
- **Poor Management and Governance:** Lack of transparency, corruption, etc. can lead to financial mismanagement.
- **Limited Access to Credit and Capital:** Financial institutions hesitate to lend to cooperatives, hindering their modernization and expansion efforts.

- **Political Interference:** Political parties influence elections within cooperatives, often leading to unqualified leadership and inefficiencies.
- **Inadequate Infrastructure and Technology:** Agricultural cooperatives face challenges with storage, transportation, and processing facilities, leading to wastage of perishable goods.
- **Lack of Marketing and Market Linkages:** Handicraft cooperatives struggle to find buyers beyond local markets, limiting profitability and market reach.

#### Measures to Enhance the Cooperative Sector in India:

- **Infrastructure Development:** Invest in warehouses, cold storage, and processing units to strengthen value chains and improve market access.
- **Cooperatives as Innovation Hubs:** Encourage cooperatives to adopt modern agricultural techniques and renewable energy solutions.
- **Cooperative Influencers:** Identify and support young, tech-savvy members to advocate for cooperatives through social media and online platforms.
- **Cooperative Acceleration Zones:** Create designated areas with relaxed regulations and incentives to foster diverse cooperative business models.

Cooperatives in India represent the essence of community-driven economics, fostering solidarity and equitable development. Addressing challenges is important to nurture a path towards sustainable prosperity.

**Q18: Critically examine the role of Comptroller and Auditor General (CAG) in ensuring financial accountability in India. Also, suggest reforms needed to strengthen its effectiveness. (15 Marks, 250 Words)**

#### Approach to the answer:

**Introduction:** Start with introducing in brief about CAG.

**Body:** Address the demand by highlighting role of CAG in ensuring accountability followed by the challenges faced by CAG, then suggest reforms to address those challenges.

**Conclusion:** Conclude with summarizing the topic.

**Answer:** The Comptroller and Auditor General of India (CAG) is an independent constitutional body established under Articles 148 to 151. It acts as a guardian of the public purse and responsible for auditing and reporting on the use of public funds.

#### Role of the CAG in Ensuring Financial Accountability

- **Audit of Accounts:** The CAG audits all receipts and expenditure of transactions related to the Consolidation Fund of India, Public Account of India, Contingency Fund of each State, and Public Account of the Union and State governments.
  - It conducts performance audits to assess whether government activities achieve intended objectives economically, efficiently, and effectively.
- **Reporting to Legislatures:** The CAG submits three audit reports i.e. Audit Report on Appropriation Accounts, Audit Report on Finance Accounts, and Audit Report on Public Undertakings, ensuring financial accountability of the Union Government.
  - These reports are scrutinized by the Public Accounts Committee (PAC) and Committee on Public Undertakings (COPU), leading to legislative oversight.
- **Promoting Transparency:** By highlighting discrepancies, inefficiencies, and instances of corruption or misuse of public funds, the CAG promotes transparency in government operations.
- **Deterrent to Malpractices:** An audit by the CAG acts as a deterrent to financial mismanagement and malpractices within government departments and public sector undertakings.

#### Challenges and Criticisms

- **Post-Facto Role:** The CAG's role is limited to post-facto auditing of expenditures, having no control over the issuance of funds from the public purse.

- **Follow-up Actions:** There are often delays or inadequate follow-up actions on CAG's recommendations, which diminishes the impact of its reports.
- **Limited Jurisdiction:** Certain government transactions such as Secret Service expenditures and few bodies fall outside the purview of the CAG's audit, limiting comprehensive financial oversight.
- **Resource Constraints:** The CAG's office may face constraints in terms of manpower, technological resources, and financial independence, which can impact the quality and scope of audits.

#### Reforms needed to strengthen the effectiveness of the CAG

- **Strengthening Follow-up Mechanisms:** Implement robust mechanisms to ensure timely and effective follow-up on CAG's findings and recommendations.
- **Expanding Jurisdiction:** Expand the jurisdiction of the CAG to include all government transactions, including those of public-private partnerships and non-governmental organizations funded by the government.
- **Ensuring Independence:** Reform the appointment process by ensuring selection of candidate by non-partisan selection committee.
- **Enhancing Technological Capabilities:** Invest in modern auditing tools and technologies to improve the efficiency and accuracy of audits.

As India advances economically and socially, the role of the CAG will remain crucial. Addressing its limitations and challenges is essential for fostering good governance in the country.

**Q19: Assess the effectiveness of the Election Commission of India (ECI) in exercising its powers independently and impartially, also suggest reforms to strengthen its functioning. (15 Marks, 250 Words)**

#### Approach to the answer:

**Introduction:** Start with description of ECI's constitutional role.

**Body:** Address the demand by discussing the role played by ECI as an independent and impartial body. Then, list down the issues with ECI's independent functioning.

**Conclusion:** Conclude with summarizing the topic or way forward.

**Answer:** The **Election Commission of India (ECI)** is a **constitutional body** established under **Article 324** of the constitution. ECI has the power of **superintendence, direction, and control** of elections of the Union and the States.

#### ECI exercises its powers independently and impartially in the following ways:

- **Free and Fair Elections:** ECI takes measures to prevent electoral malpractices, such as **booth capturing, bogus voting, and voter intimidation** through comprehensive guidelines, codes of conduct, and monitoring of compliance.
- **Regulation of Political Campaigns:** The commission ensures that political parties adhere to ethical standards through strict enforcement of the Model Code of Conduct (MCC).
- **Electoral Reforms:** ECI plays an active role in initiating electoral reforms to improve the electoral process, for example introduction of Voter Verified Paper Audit Trail (VVPAT).
- **Voter Participation:** ECI oversees periodic revisions of voter list to maximize voter participation. It conducts voter education programs such as SWEEP for awareness among citizens.
- **Dispute Resolution:** ECI acts as a neutral arbiter in adjudicating complaints and grievances filed by political parties, candidates, or voters, ensuring a fair and impartial hearing.

#### However, the exercise its power is hindered by the following issues:

- **Security of Tenure:** The terms of ECI's members are not outlined in the Constitution and they can be easily disqualified on the recommendation of the Chief Election Commissioner.
- **Post-Retirement Benefits:** The lure of post-retirement benefits through postings in government bodies allows for executive influence on ECI's decisions.
- **Limitations of MCC:** MCC is non-statutory in nature and is often flouted by candidates.

- **Lack of Power:** to deregister political parties.
- **Influence of Money and Muscle Power:** Electoral bonds, legislators with criminal background, etc. putting a question mark on the functioning of ECI.

#### Reforms to Strengthen ECI:

- **Financial Autonomy:** Establish an independent budgetary allocation for ECI to reduce financial dependence on the executive.
- **Strengthening Legal Powers:** Grant ECI prosecutorial powers to enforce electoral laws more effectively.
- **Institutional Reforms:** Introduce multi-member election commissions at the state level to decentralize decision-making and reduce political pressure.
- **Technology Enhancement:** Upgrade EVMs and VVPAT systems to address security concerns and enhance transparency.
- **Capacity Building:** Regular training programs for ECI officials to keep abreast of the latest electoral practices and technologies.

Implementing suggested reforms will empower the ECI to conduct elections more effectively, ensuring the trust and confidence of the electorate.

**Q20: Discuss the challenges that hinder free and fair elections in India. What specific amendments to the Representation of the People Act 1950 and 1951 would help address these challenges? (15 Marks, 250 Words)**

#### Approach to the answer:

**Introduction:** Start with free and fair election and link it with RPA act.

**Body:** Address the demand by discussing challenges hindering Free and Fair Elections in India followed by Amendments Needed in the Representation of the People Act 1950 and 1951.

**Conclusion:** Conclude with summarizing the topic or way forward.

**Answer:** Free and fair elections are the cornerstone of any democratic system, ensuring the will of the people is accurately represented and giving legitimacy to the government. In India, the Representation of the People Acts of 1950 and 1951 are pivotal in regulating elections.

#### Challenges Hindering Free and Fair Elections in India:

- **Lack of Powers for Enforcing MCC:** The Model Code of Conduct (MCC) is vital for maintaining the decorum of elections but lacks legal backing.
- **Booth Capturing:** A grave concern is booth capturing, notably observed in states elections like Bihar and West Bengal, undermining the essence of democratic voting.
- **Politicization of social media:** Social media campaigns often inflamed religious and social divisions, affecting voters' judgment and the fairness of the electoral process.
- **Electoral Violence:** Incidents like the Nandigram violence in West Bengal deter people from participating in elections.
- **Fake Voter IDs:** The discovery of many fake voter ID cards in the Raj Rajeshwari Nagar constituency in Karnataka during the 2018 elections casts a shadow on the credibility of the electoral rolls.
- **Qualification of Voters:** The current criteria for voter qualification may exclude certain eligible groups such as migrant workers.

#### Amendments Needed in the Representation of the People Act 1950:

- **Standardization of Electoral Rolls:** Introduce standardized formats and stringent verification procedures for electoral rolls which would enhance their credibility and address the recurring issue of inconsistent voter lists.
- **Inclusive Definition of Eligibility:** Ensure a broader and more inclusive definition of voter eligibility such as Migrant Workers so that migrant workers can vote in elections irrespective of their current place of residence.

- **Multi-Lingual Voter Education:** Amendment requiring electoral rolls and voting guidelines to be published in multiple languages which would enhance inclusivity given India's linguistic diversity.

**Amendments Needed in the Representation of the People Act 1951:**

- **Legal Backing for MCC:** Making the MCC legally binding and integrating it into the RPA 1951.
- **Independent Electoral Staff:** A permanent and independent Secretariat for the Electoral Commission of India (ECI).
- **Campaign Finance Transparency:** Make campaign donations fully transparent, modelled after the U.S. Federal Election Campaign Act, is essential to maintain the integrity of the electoral process.
- **Strict Penalties for Booth Capturing:** Stricter penalties should be imposed to deter such activities.
- **Regulation of Social Media Campaigning:** Regulate online campaigning like Germany's Network Enforcement Act which mandating social media platforms to remove hate speech and fake news.

By integrating these amendments, India can significantly bolster the integrity of its electoral system, ensuring a more inclusive, transparent, and efficient democratic process.